SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/02/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued**.** Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C24-03050
CASE NAME: ZACH ROCKWELL VS. EAST BAY MUNICIPAL UTILITY DISTRICT
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 9, a Case Management Conference will be held.

2. 8:31 AM CASE NUMBER: C24-03551
CASE NAME: LAMOND KING VS. MOISES BARRAGAN RAMIREZ
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:

TENTATIVE RULING:

Plaintiff Lamond King and counsel for Defendant Moises Ramirez are ordered to appear for a Case Management Conference.

3. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 14, a Case Management Conference will be held.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. THE JOINT CORP
***HEARING ON MOTION IN RE: FINAL APPROVAL**
FILED BY: SENNA, STEPHANIE
TENTATIVE RULING:

Plaintiff Stephanie Senna moves for final approval of her class action and PAGA settlement with defendant John Muir Health. The Court granted preliminary approval on February 2, 2026.

A. Background and Settlement Terms

The original complaint was filed on August 31, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. An amended complaint adding additional PAGA claims was filed October 8, 2025.

The settlement would create a gross settlement fund of $1,400,000. The class representative payment to the plaintiff would be $10,000. Attorney's fees would be $490,000 (35% of the settlement). Litigation costs would not exceed $25,000. The settlement administrator's costs (ILYM) would not exceed $12,000. PAGA penalties would be $50,000. The net amount paid directly to the class members would be about $825,000. The fund is non-reversionary. The average net payment for each class member is approximately $1,058.93, with the highest payout being $5,220.92.

Because one set of LWDA notices in question were filed before June 19, 2024, while the other was filed after that date, penalties attributed to the earlier notice must be allocated 25% to the aggrieved employees, while those attributed to the later notice must be allocated 35% to the aggrieved employees. (Labor Code §2699(m), (v)(1).) $40,000 of the payment is to be split 75%/25%

and $10,000 of the payment is to be split 65%/35%.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period. The class administrator calculated 47,295.14 workweeks and 776 class members. The class list contained 842 individuals, who worked 58,218.58 workweeks. The escalator provision of the settlement agreement was triggered, and Defendant shortened the class period to end December 7, 2024, lowering the class number to 775—which increased by one member after the notice period expired.

The class members are not required to file a claim. Notice was mailed to all members of the class, who were given an opportunity to opt out of the settlement or to object. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) No class member submitted an opt-out. Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps have been taken with respect to mail that is returned as undeliverable. 101 notice packets were returned or undeliverable, and 80 of those were remailed but 21 have been deemed undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and will be forwarded to the California Controller's Unclaimed Property Fund.

The settlement contains release language covering "all claims arising during the Class Period that were alleged, or reasonably could have been alleged, based on the facts stated in the Complaints[.]" (Settlement, Pars. 5, 5.2.) The limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken, and counsel had the information evaluated by outside experts. The matter settled after arms-length negotiations, including a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, estimating the recovery on the class claims relative to their potential values, breaking down the analysis claim-by-claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

The LWDA was notified of the settlement.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek 35% of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 203.7 hours to date, ranging from $600 to $1,500 per hour. This results in a lodestar of $168,145, yielding an implied multiplier of 2.91. They provide no declaration regarding their highest biller by hourly rate, Justin Marquez, other than a brief footnote. The other counsel all have graduated from law school within the last 5 years, and their own data do not sufficiently support a billing rate of $850 for a fifth year associate. Instead, the data show that the *third quartile* of generically titled "associates" can rise to $875. Thus, the lodestar calculation is somewhat higher than ordinarily would be justified.

The Court agrees that the lodestar cross check "does not override the trial court's primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award." (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, there may be some preclusion, but a total of about 203.7 hours, spread over just over two years, suggests that it was not substantial. Another consideration is the result obtained. It is certainly sufficient to warrant approval, but is not extraordinary. The issue is whether there is anything about this case that justifies a higher than usual fee. As noted previously, the case did not involve exceptional risk—this type of case nearly always settles. It is complex, but not especially novel, since the claims made here are common. The resolution after two years of litigation is not especially early. Counsel will be well-compensated for their work, and the possibility that an attorney's fee could be reduced somewhat smaller multiplier in a given case would not discourage counsel from taking this type of case.

The Court awards fees of $350,000 (which is 25% of the size of the fund), and which still constitutes an implied multiplier of 2.08.

The litigation costs are reasonable and are approved.

As to the requested representative payment of $10,000, Ms. Senna attests that she participated in the litigation, took the risk of liability for costs, and that her participation could hurt her chances of being hired by other employers. She estimates his time spent at 35 hours. She also provided a general release, although she does not indicate that she had any other claims with value. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request for a representative payment is approved but it is reduced to $5,000. The difference shall be awarded to the class.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in attorney's fees and representative payment as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-02891
CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE**
FILED BY: CLINTON, TAKENYA B.
****TENTATIVE RULING:****

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Requests for Admission – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in Plaintiff's opening brief that are not addressed (either specifically or by category) in Plaintiff's reply brief are no longer in dispute.

TPMG argues that the requests go beyond relevance to this case. Plaintiff seeks responses relating to positions she never applied to, which pre-date her disability. Plaintiff responds that the qualifications for positions she never applied for "are relevant to demonstrating a pattern of discriminatory treatment, to establishing what comparable positions existed within TPMG to which Plaintiff could have been reassigned, and to evaluating whether TPMG's stated reasons for not selecting Plaintiff – across a years-long period – are pretextual." The Court does not entirely follow this argument. Positions that were open prior to her disability, to which she did not apply, and which were then not open or available when she wanted or needed reassignment are not relevant to her accommodations claim unless they are substantially similar to positions that *were open or available* when she wanted or needed reassignment.

<u>Request for Admission Nos. 4, 5</u>

These Requests seek TPMG's admission that Plaintiff was qualified for these two pre-disability positions. Plaintiff points out inconsistencies between TPMG's briefing regarding its supplemental responses and its actual supplemental responses. TPMG's brief states that they supplemented their response to admit that Plaintiff *indicated on her application* that she met the qualifications for the positions and deny that she was more qualified. But its supplemental responses do not contain the admission – instead it states that she never applied so it cannot state whether she was qualified. The Court is confused as to how TPMG could ever have provided the response it states it is supplementing: If Plaintiff never applied for a position how could she have indicated in her application that she was qualified for such a position? The Court will not order further supplementing. Questions of qualifications for positions Plaintiff never applied for, if relevant to her claims, are better probed in deposition.

<u>Request for Admission Nos. 20, 31</u>

These Requests seek TPMG's admission that Plaintiff was required to "compete" for two positions for which she did apply. Plaintiff complains the collective bargaining agreement cannot be raised as a new reason for denial raised for the first time in a brief. It must be in the discovery response. In this context, the Court disagrees. In the context of Plaintiff's applications and this workplace, the Court will not require supplemental responses.

Request for Admission No. 77

This Request seeks Defendant's admission that Plaintiff was not considered for a specific Staff Nurse II – Emergency Department role. TPMG's initial response admitted that she applied after the application period. The supplemental response is a straight denial. Plaintiff, without citation states, "A party may not serve a supplemental response that withdraws a prior admission without explanation." Plaintiff requests that TPMG either explain the denial or restore the admission. The Court, however, sees the two responses as the same. TPMG's original "admission" was not an admission of the requested fact, and the denial is substantively similar. The Court will not order any supplemental response.

Qualified admissions

Plaintiff argues that TPMG's answers to Request Nos. 41, 42, 46, 50, 51, 55, 59, 60, 64, 68, 69, 73 fail to answer the Request properly. TPMG notes that its answers provide explanation. Both parties are correct. TPMG must amend to actually admit or deny the question as phrased. Further context can be added either in the Requests or through other forms of discovery.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests $4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order $500 in sanctions for this Motion, payable within 30 calendar days of this order.

6. 9:00 AM CASE NUMBER: C23-02891
CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, SET ONE**
FILED BY: CLINTON, TAKENYA B.
****TENTATIVE RULING:****

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Form Interrogatories – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in

Plaintiff's opening brief that are not addressed (either specifically or by category) in Plaintiff's reply brief are no longer in dispute.

TPMG argues that, to the extent its supplemental responses answer Plaintiff's concerns, the Motion is Moot. Plaintiff maintains several concerns.

Form Interrogatory No. 215.1

This Interrogatory seeks information relating to individuals interviewed concerning Plaintiff's alleged adverse employment action. Plaintiff argues that TPMG's supplemental response is inadequate because it states that there was no investigation, contradicting TPMG's opposition papers—which say that names have been provided—and response to Form Interrogatory No. 207.2, which lists investigators. Plaintiff is correct in this assessment. The Court suspects that Defendant's supplemental response is in error, given Defendant's other filings, including the Response to Plaintiff's Separate Statement. The Court orders that this response be reviewed and amended to be accurate.

Form Interrogatory No. 12.1

This interrogatory seeks contact information for percipient witnesses. Defendant has instructed that all identified responsive individuals may be contacted through counsel except former employee Donovan Taylor, but it fail to give his contact information and does not explain any reason for omission. Defendant must provide any known contact information for Donovan Taylor.

Form Interrogatory No. 12.2

This Interrogatory, like Form Interrogatory No. 215.2, seeks information relating to individuals interviewed concerning this case. Defendant rightfully noted that this interrogatory is duplicative, but strangely gave a different response. Plaintiff complains that instead of giving substantive information and names of witnesses regarding its November 28, 2023 investigation, TPMG referred to "over 100 pages of document production." Plaintiff claims that Code of Civil Procedure section 2030.230 is not satisfied by reference to over 100 pages. The Court disagrees. 100 pages is not a substantial number of pages for review. Plaintiff, however, also argues that those pages do not contain addresses or phone numbers of the individuals interviewed. Defendant must provide such information, if known.

Form Interrogatory No. 201.7

This interrogatory seeks the contact information for individuals selected for positions for which Plaintiff was not selected. It also seeks the reasons those individuals were selected over Plaintiff. TPMG has supplemented its original response with the date of selection and the reasons, but it did not give the contact information. TPMG defends such withholding because those individuals are unlikely to have the reason for their selection over Plaintiff and also to protect the privacy of those individuals. Given that TPMG has responded that Plaintiff failed to meet the minimum qualifications for those positions, the Court finds that TPMG's reasons for withholding contact information outweigh Plaintiff's interest in this information. Had she met minimum qualifications, the analysis may have been different.

Form Interrogatory No. 217.1

Plaintiff complains that TPMG identified supporting documents by Bates numbers but documents contain no Bates numbers. If this is accurate, TPMG must produce the documents as intended—with the Bates numbers that the Court assumes were inadvertently omitted.

Form Interrogatory No. 209.2

Although Plaintiff initially sought a wider range of employee complaints, it appears that Plaintiff agrees that a narrowing of the scope of inquiry is appropriate here. Plaintiff argues that TPMG has nevertheless improperly narrowed that inquiry from "same or similar" claims involving the same "decisionmakers and investigators" to "same" claims involving the "same decisionmakers." If Plaintiff seeks additional searches, it must provide some specificity so that TPMG may make appropriate and accurate inquiries as to "similar claims." Once that clarification is provided, TPMG must provide supplemental responses relating to the same decisionmakers and investigators.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests $4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order $500 in sanctions for this Motion, payable within 30 calendar days of this order.

7. 9:00 AM CASE NUMBER: C23-02891
CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS**
FILED BY: CLINTON, TAKENYA B.
****TENTATIVE RULING:****

Plaintiff Takenya Clinton brings this Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents – Set One. On June 17, 2026, one day before filing its opposition to the Motion, Defendant The Permanente Medical Group (TPMG) filed supplemental responses.

Although the parties dispute the full impact of TPMG's supplemental responses, it does appear that the supplements have narrowed the dispute. The Court understands that any requests addressed in Plaintiff's opening brief that are not addressed (either specifically or by category) in Plaintiff's reply brief are no longer in dispute.

Request for Production of Documents Nos. 80-109, 277, 278, 282

For these requests, TPMG states that it will supplement but Plaintiff states that no supplemental documents or privilege log have been produced as of the date of Plaintiff's reply brief. TPMG must produce relevant, responsive documents.

It also appears that TPMG has restricted its production of Plaintiff's wage and schedule records to 2018 to the present, given the statute of limitations. There is no cognizable substantial burden to production of these records from *2016* (when Plaintiff began her employment) to the present. They are potentially relevant and must be produced.

Request for Production of Documents Nos. 62-65

TPMG has produced documents in PDF format and Plaintiff requests native format. Plaintiff properly points—without citation, however—to Code of Civil Procedure 2031.280. Neither party has presented any argument regarding usability or burden. Plaintiff requested documents produced in native format and TPMG has not explained its objection.

Privilege Log

TPMG has made several claims of privilege and work product but appears not to have produced a privilege log. TPMG must produce a privilege log forthwith.

Organizational Chart

Plaintiff complains that TPMG has failed to produce an organizational chart for the full period of Plaintiff's employment. The Court agrees that such organizational chart—for the portion of Defendant's business that is relevant to Plaintiff—must be produced.

Timing

All amended responses ordered by the Court must be provided within 30 calendar days of this order.

Sanctions

Plaintiff requests $4,785 in sanctions. Defendant argues that the supplemental responses mooted the motion. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." After a thorough analysis of the original requests, the supplemental responses (and the timing of those responses), and both parties' arguments, and the scope of the meet and confer process, the Court will order $2000 in sanctions for this Motion, payable within 30 calendar days of this order.

8. 9:00 AM CASE NUMBER: C24-02737
CASE NAME: VANESSA MIGUEL VS. CONGREGATION B'NAI SHALOM OF CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**
FILED BY: MIGUEL , VANESSA
TENTATIVE RULING:*

Plaintiffs Vanessa Miguel and Melissa Maricich move for approval of the settlement of their PAGA suit against Defendant Congregation B'Nai Shalom of Contra Costa Count.

A. Background of the Case and Terms of Settlement

This a PAGA case, alleging a variety of violations of the Labor Code concerning failure to provide rest and meal breaks, failure to pay for off-the-clock work, failure to reimburse business expenses and cascading derivative violations. Plaintiff has given notice to the LWDA. The complaint was filed October 11, 2024. There is no class action, only a PAGA claim.

Plaintiffs explain the various payments except as to the aggrieved employees, perhaps because to do so would be surprising, but the Court has done the math and the payments are as follows:

Total settlement amount	$95,000
Payment for Melissa Maricich	$42,500
Payment for Vanessa Miguel	$37,500
Total payments to Plaintiffs	$80,000
"Net settlement amount" (Total minus Plaintiff payments)	$15,000
Attorneys' fees (35% of total)	$5,250
Costs	$5,000
Administrator Expenses	$3,245
Remainder	$1,755
65% PAGA Payment for LWDA	$1,140.75
35% PAGA Payment for Aggrieved Employees	$614.25

The payments from the employee share of the penalty will be distributed among the employees based on the number of pay periods each individual worked during the PAGA period. According to Plaintiffs, there are 58 aggrieved employees with 997 pay periods. This results in an average payout of $10.59. According to the settlement agreement, attorneys' fees are also being paid out of the individual payments to Maricich and Miguel, such that Maricich receives $4,250 in wages and the remainder ($38,250) of the amount is payable to the attorneys for an unknown split between penalties and attorney's fees. Miguel similarly receives $3,750 in wages with the remainder ($33,750) payable to the attorneys for an unknown split between penalties and attorney's fees. Counsel state that they have spent almost $25,000 in time on this case.

Plaintiff's counsel attests that they engaged in extensive arms-length settlement negotiations.

Informal discovery was undertaken. Counsel's declarations provide a general discussion of the strengths and weaknesses of the case. They never provide an estimate of the maximum potential recovery—or any calculations at all—but they opaquely explain why the settlement is justified. In general, they aver that during the litigation, Defendant closed its preschool and issued severances to some number of employees, which included releases of claims including those in this lawsuit. They also state that "Plaintiff's claims were largely based on the missed breaks, and . . . Defendant's policies were, on their face compliant."

They waive in the general direction of other difficulties without any explanation, such as "the uniqueness of Plaintiffs' injuries which may have undermined their individual and representative claim" and "Plaintiff's counsel risk of obtaining full recovery of claimed PAGA penalties in light of Defendant's disclosures."[1]

Plaintiff provided required notices to the LWDA of the initial claims and of the proposed settlement.

The settlement provides a process for mailing the notices to the aggrieved employees, who will not have to submit a claim, along with a process for following up on returned mail. Because this is a PAGA settlement, not a class action, there is no opportunity to object or opt out.

The settlement provides that the value of checks uncashed after 180 days will be turned over to the State Controller's Office Unclaimed Property Division in the names of the aggrieved employees.

The settlement releases any claims under PAGA that "All Aggrieved Employees, the State of California, and the LWDA are deemed to release, . . . all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and the PAGA Notices during the PAGA Period" (The PAGA period is August 6, 2023, through July 21, 2025.) Limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Similarly, in a PAGA case, the release is limited to claims set forth in the LWDA notice.

B. Standards for Review of a PAGA Settlement

Settlements in PAGA cases must be approved by the court. (Labor Code § 2699(s)(2).) The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public

[1] This latter risk seems insignificant, as the value of "claimed PAGA penalties" insubstantial.

policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 63.)

C. Application to this settlement

Plaintiff indicates that the settlement is fair and was evaluated by counsel based on adequate information and arms-length negotiation. Even assuming success on the merits of each claim, PAGA gives the court discretion to reduce penalties for a variety of reasons, including where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory." (Labor Code, § 2699(e)(2).) These factors make the result hard to predict.

Labor Code section 2699(k)(1) provides that a prevailing employee in a PAGA action may recover attorney's fees. Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Although *Lafitte* concerns a class action, not a PAGA-only case, this Court views the use of a lodestar cross-check as appropriate here.

The Court appreciates representations that this case did not pan out the way Plaintiffs initially thought it would, with some unstated number of aggrieved employees having signed releases as part of a severance, and Defendant having a facially valid meal and rest break policy. But they do not explain how the individual Plaintiffs are set to receive $42,500 and $37,500 while the rest of the employees receive an average of $10. Is this because of waivers or variability in merits or something else? This inequality is not improved by assuming that the individual Plaintiffs receive instead the substantially smaller amounts of $4,250 and $3,750 with the attorneys receiving the rest, which would be a multiplier of 2.9.[2] The Court has reviewed the hours billed and they do not reveal substantial work or much of substance.

Additionally, the Court does not appreciate that Counsel appear to be hiding the ball on their fees. They compare the explicit fees of $5,250 to their recorded time, but never explain how much they are *actually* receiving from the individual plaintiffs' portions. If Counsel wish to gain the benefit

[2] The Court does not assume that there is *no* portion of the amount payable to counsel that is for penalties and subject to a 1099, but because Plaintiffs have provided no information, the Court is merely considering the outside possibilities.

of a collective action by pleading, litigating, and releasing PAGA claims, they must also follow the rules of collective actions and have their fees relate to the benefit to the whole. That some portion of their fees is coming from the individual payouts would be of no consequence if this were an individual case. But it is not.

Moreover, the individual payments to Miguel and Maricich are framed not as an "enhancement payments" but as individual settlements from a gross settlement amount. As is evident above, the Court cannot figure out what amount is the individual amount for each of the individual Plaintiff's enhancement and what amount is actually attorney's fees. On their face, these enhancement payments are not acceptable.

D. Conclusion

Counsel did relatively little work on this case and achieved minimal success. The State of California gets less than $1,200. The employees who are not Vanessa Miguel and Melissa Maricich get less than $615 collectively. This is not a PAGA resolution. This is an individual case masquerading as a PAGA case, with individual results that are absolutely respectable, but abysmal on a representative basis. The Court cannot approve this settlement, with its corresponding waivers. The request for approval is **denied**.

9. 9:00 AM CASE NUMBER: C24-03050
CASE NAME: ZACH ROCKWELL VS. EAST BAY MUNICIPAL UTILITY DISTRICT
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: EAST BAY MUNICIPAL UTILITY DISTRICT
TENTATIVE RULING:

Before the Court is Defendant East Bay Municipal Utility District's Demurrer to First Amended Complaint.

Defendant's unopposed Request for Judicial Notice is **granted**. (Evid. Code § 452 (c); *Gong v. Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1.)

Factual Allegations

Plaintiffs are husband and wife who own real property located at 3215 Acalanes Avenue in Lafayette, California ("Property"). (¶ 1.) In approximately July 2021, Plaintiffs noticed an excessive amount of water saturating the soil in the front, side, and back yards and crawl space of the Property. (¶ 6.) They promptly called a plumber who determined that the water was not the result of a leak in the Property's plumbing. (*Ibid.*) The plumber suggested Plaintiffs contact EBMUD and have it conduct a site inspection to determine if the leak was coming from an EBMUD maintained pipe. (*Ibid.*)

Plaintiffs contacted EBMUD which inspected the Property and found a water leak from an EBMUD pipe. (¶ 7.) Plaintiffs were told by EBMUD that the problem was fixed. (*Ibid.*) Water, however, continued to visibly leak onto the Property, flooding the yards and crawl space. (¶ 8.) Plaintiffs contacted EBMUD again, who inspected the area and informed Plaintiffs that no leaks were coming from any of its pipes or facilities. (*Ibid.*) Plaintiffs hired a contractor who installed a French drain to attempt to remedy the situation but were unsuccessful in preventing the flooding which continued. (¶ 9.)

In November 2021, Plaintiffs contacted EBMUD again, who inspected the Property for a third time. They were still unable to determine the cause of the flooding. (¶¶ 10-11.) After multiple visits, the EBMUD inspectors eventually found a backup or blockage of the water in the water line under the manhole cover in front of Plaintiff's neighbor's property. (¶ 11.) EBMUD indicated it was not their pipe, and suggested Plaintiffs contact the City of Lafayette Public Works for assistance. (*Ibid.*) At that time, Plaintiffs began observing significant signs of water damage inside the house. (¶ 12.)

Plaintiffs contacted the City of Lafayette, who directed them to Contra Costa Public Works. (¶ 13.) At the end of November 2021, a representative of Public Works conducted a site visit and concluded the subject storm drain/water line was not the City of Lafayette's responsibility, and that Plaintiffs should contact EBMUD again. (*Ibid.*) During this time, Plaintiffs were attempting to conduct repairs to the water damage to their Property. (¶ 14.)

Plaintiffs contacted EBMUD in December 2021, who again inspected the Property and informed Plaintiffs that the water was not coming from pipes maintained by them, and that they should contact the Public Works again. (¶ 15.) Plaintiffs contacted the City of Lafayette and Public Works which both re-affirmed that the pipers were not maintained by them. (¶ 16.) In December 2021, the storm drain began to visibly overflow with water. (*Ibid.*) Public Works continued to investigate and determine the location of the water line and what entity was responsible for it. (¶ 17.) Plaintiffs continued to suffer damage to their Property due to the flooding. (*Ibid.*)

On or about January 6, 2022, EBMUD again inspected the site and detected a blockage. (¶ 18.) At that time, EBMUD determined that the storm drain line had been installed by EBMUD in 1927 and that it had failed to maintain it. (¶ 19.) EBMUD removed the blockage in approximately mid-January 2022. (*Ibid.*) The flooding onto the Property decreased but did not stop. (*Ibid.*)

On January 22, 2022, Plaintiffs submitted a government claim to EBMUD. (¶ 20; RJN Ex. A.) EBMUD never responded to this claim. (¶ 20) EBMUD did however, contact Plaintiffs and request that it be allowed to investigate Plaintiffs' home while Plaintiffs were conducting initial repairs. (*Ibid.*) At that time, Plaintiffs also had their home inspected by an industrial hygienist and certified mold remediator. (¶ 21.) Multiple problems were identified. (*Ibid.*) In February 2022, EBMUD conducted its own inspection of the Property, but never shared the results with Plaintiffs. (¶ 22.)

On February 8, 2022, two EBMUD representatives, Kim Damico and Daryll Yagi, both told Plaintiffs that EBMUD could not process their claim until all repairs were completed. (¶ 22.) "As part of this conversation, Ms. Damico and Mr. Yagi told Plaintiffs that the process for submitting a government claim was that Plaintiffs had to perform repairs before EBMUD could consider their claim and compensate them, and that until then their claim would remain open." (*Ibid.*) Mr. Rockwell had subsequent conversations with Mr. Yagi which confirmed his understanding that repairs had to be completed first before EBMUD would pay on the claim. (*Ibid.*) Later email communications also seemed to confirm this procedure. (*Ibid.*)

Plaintiffs paid hundreds of thousands of dollars to remediate their Property. (¶ 23.) Remediation took many months, and the air quality was not cleared until July 2022. (*Ibid.*) They hired a contractor in September 2022 to repair the Property. (¶ 25.) Most of the repairs were completed by August 2023, with the full repairs being completed in February 2024. (*Ibid.*)

In July 2024, repairs were completed and the flooding causing damage to the Property was contained. (¶ 20.) Plaintiffs submitted another EMBUD Claim Form on July 9, 2024, which expanded on the claim by including all the repairs made to date. (¶ 25; RJN Ex. B.) Plaintiffs believed this was the next step in the process explained to them by EBMUD. (*Ibid.*)

On August 23, 2024, EBMUD sent Plaintiffs letters explaining that "[t]o the extent that the EBMUD Claim Form, dated 7/9/2024, … was intended to be a separate claim from the EBMUD Claim Form, dated 1/22/2022 … it is being returned because it was not [timely] presented…." (RJN Exs. C-D.) "This was the first time that EBMUD had given any indication that it was rejecting Plaintiffs' claim and was contrary to what it had previously represented to Plaintiffs, which was that their claim remained open pending submission of all repairs." (*Ibid.*)

Plaintiffs filed their Complaint on November 12, 2024. A First Amended Complaint was filed on March 13, 2025. It asserted four causes of action: (1) inverse condemnation; (2) nuisance; (3) trespass; and (4) maintenance of a dangerous condition in violation of government code § 835.) EBMUD demurred to each cause of action in the FAC. The Court overruled the demurrer as to the inverse condemnation cause of action. The Court sustained the demurrer on statute of limitations grounds as to the three remaining causes of action. After hearing argument, the Court granted Plaintiffs leave to amend to give them an opportunity to plead facts to support their estoppel and/or tolling arguments.

The Second Amended Complaint was filed on October 14, 2025. EBMUD now demurs to the second, third, and fourth causes of action.

<u>Standard for Demurrer</u>

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 ("*Doheny*").)

Legal conclusions are insufficient. (*Id*. at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 citing *Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42.) In reading a complaint in the context of a demurrer, the court gives "the complaint a reasonable interpretation and read it in context." (*Schifando v. City of Los Angeles* (2003)

31 Cal.4th 1074, 1081.) The allegations in the complaint must be construed "liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

<u>Analysis</u>

Statute of Limitations

As conceded by both parties, the only substantive changes to the SAC relate to Plaintiff's allegations pertaining to their estoppel/tolling arguments contained in paragraphs 22, 25, and 26. (See e.g. Opp at 4:5-6: "The amended allegations central to estoppel and equitable tolling appear in paragraphs 22, 25, and 26.") The Court's October 2, 2025, Order After Hearing extensively discusses the application of the statutes of limitations in this matter, finding that, on the face of the FAC the claims were barred by the applicable statutes of limitations.

Here, neither party disputes that prior ruling, but instead the focus of the demurrer is on whether the SAC alleges sufficient facts to support an equitable estoppel and/or tolling argument. The Court incorporates by reference the October 2, 2025, Order After Hearing with regarding the underlying analysis and will now only focus on the estoppel/tolling arguments.

<u>Estoppel</u>

"The essential ingredients of an estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon, or must so act that the other party has a right to believe that it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) the other party must rely on the conduct to her injury." (*Moore v. State Bd. of Control* (2003) 112 Cal.App.4th 371, 384.)

"A public agency may be equitably estopped in the same manner as a private party." (*Citizens for a Responsible Caltrans Decision v. Dep't of Transp.* (2020) 46 Cal.App.5th 1103, 1128.) "[C]onduct on behalf of a public agency, which would induce a reasonably prudent person to avoid seeking legal advice or personally commencing litigation, may estop the public agency from asserting a claims defense … .'" (*Ibid.* quoting *Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 440.)

On January 22, 2022, Plaintiffs submitted a government claim to EBMUD. In February of that year, EBMUD inspected the Property and "specifically represented to Plaintiffs that it would consider Plaintiffs' claim once repairs were completed and that Plaintiffs should delay further submissions to EBMUD until repairs were complete." (¶ 22.) About 2 weeks later, on February 8, 2022, EBMUD conducted a site inspection of the Property. At that time, two representatives of EBMUD again informed Plaintiffs that it could not process their claim until all repairs were completed. (*Ibid.*) "As part of this conversation, Ms. Damico and Mr. Yagi told Plaintiffs that the process for submitting a government claim was that Plaintiffs had to perform repairs before EBMUD could consider their claim and compensate them, and that until then their claim would remain open." (*Ibid.*)

Subsequently, Mr. Rockwell had additional conversations and email communications with the EBMUD representative which confirmed his understanding that repairs had to be completed first before EBMUD would pay on the claim. These communications led Plaintiffs to believe that their claim would remain open while the necessary repairs were completed and that they should supplement their claim when the repairs were complete.

Plaintiffs proceeded with their repairs, then submitted a second 'supplemental' claim on July 9, 2024. On August 23, Plaintiffs each received letters from EBMUD indicating that their July Claims were being rejected as untimely – to the extent that they were "intended to be a separate claim" from the January 22, 2022, claim. It was at this time that Plaintiffs first realized that EBMUD did not 'keep their claim open' and did not intend to act upon their Government Claim.

"An estoppel may arise although there was no designed fraud on the part of the person sought to be estopped. [Citation.] To create an equitable estoppel, 'it is enough if the party has been induced to *refrain* from using such means or taking such action as lay in his power, by which he might have retrieved his position and saved himself from loss.' [Citation.]" (*Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 440 quoting *Benner v. Industrial Acc. Com.* (1945) 26 Cal.2d 346, 349-50.) "Where the delay in commencing action is induced by the conduct of the defendant it cannot be availed of by him as a defense." (*Benner*, 26 Cal.2d at 350.)

As EBMUD's authority states: "Estoppel most commonly results from misleading statements about the need for or advisability of a claim; actual fraud or the intent to mislead is not essential." (*Ortega v. Pajaro Valley Unified School Dist.* (1998) 64 Cal.App.4th 1023, 1044.) The *Ortega* court noted that estoppel had been applied in cases such as when the public entity "gave plaintiff verbal and written assurances that it need not take any further action to perfect a claim against the district, and plaintiff reasonably relied on these representations." (*Id.* at 1045 citing *Ocean Services Corp. v. Ventura Port Dist.* (1993) 15 Cal.App.4th 1762, 1776.) As the *Ocean Services Corp.* found: "The claims may not be invoked to penalize a plaintiff who at the behest of a public entity has been induced not to take action, but instead to wait until the situation creating a conflict has stabilized." (*Ocean Services,* 15 Cal.App.4th at 1776.)

Here, Plaintiffs submitted a comprehensive 50+ page Claim Form. About two weeks later, EBMUD representatives came to the Property, inspected the site, and informed them that their claim could not be processed until all repairs were completed. They were also told that their claim would 'remain open' until they did so. Notably, this all occurred within the 45-day window within which EBMUD was required to act. As such, the claim was still open and pending when the EBMUD representatives made these statements to Plaintiffs.

As noted by EBMUD, the statute indicates that the 45-day review period can be extended 'by written agreement.' First, there are allegations that there were email subsequent to the inspection which "further confirmed" Mr. Rockwell's understanding that the claim would remain open until the repairs were completed. These emails may support a showing that there was a 'written agreement' to extend the time for EBMUD to respond to the Claim. At least, at the demurrer stage, where the allegations in the complaint must be construed "liberally in favor of the pleader," that is a reasonable reading of the allegations. (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Second, the point of an estoppel argument is that the defendant improperly misled Plaintiffs (intentionally or not) to refrain from "using such means or taking such action as lay in his power' to 'save himself from loss.' (*Benner* 26 Cal.2d at 349-50.) Plaintiffs' position is that a writing wasn't necessary because they were misled by the statements of the EBMUD representatives.

EBMUD was aware of the facts in that it knew that Plaintiffs had submitted a claim seeking compensation for an event Plaintiff's believed it was (at least partially) responsible for. The EBMUD representatives made representations that Plaintiffs had a reasonable right to reply upon – namely, that their claim would remain open until the repairs were completed. Plaintiffs were not aware that their claim would be rejected by operation of law despite these statements by EBMUD that their claim would remain open until Plaintiff's supplemented their claim. Instead, Plaintiffs reasonably relied upon the representations of the EBMUD representatives that came to the Property to inspect the site and discuss their claim.

EBMUD argues that for estoppel to apply, the "act or omission must constitute a misrepresentation or nondisclosure of a material *fact*, rather than law," quoting *Millview Cnty. Water Dist. v. State Water Res. Control Bd* (2019) 32 Cal.App.5th 585, 599. Here, the misrepresentation was of fact – *i.e.* that the claim would remain open until such time as Plaintiffs submitted a new/supplemental claim including all repairs made. Notably, these statements were made while the claim was still open. It is reasonable to expect a person to rely upon such statements by an EBMUD representative and conclude that there was noting else they needed to do until such time as the repairs were compete and they updated their claim.

"Estoppel generally is a question of fact." (*Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1506.) It is only when the "facts are undisputed and *only one reasonable conclusion can be drawn from them*," that "whether estoppel applies is a question of law." (*Ibid*. emphasis added.) "Estoppel may be proven by reasonable inferences drawn from the evidence." (*Estill v. County of Shasta* (2018) 25 Cal.App.5th 702, 710.) "A demurrer is not the proper vehicle by which to resolve such factual issues…." (*Elmore v. Oak Valley Hospital Dist.* (1988) 204 Cal.App.3d 716, 724.)

Based on the above, the Court finds that the SAC sufficiently pleads facts that may support an equitable estoppel argument.

<u>Laurie Rockwell's Claim</u>

The presentation of a claim to a public entity and its rejection are prerequisites to maintaining suit against the entity. (*Nguyen v. Los Angeles County Harbor/UCLA Medical Center* (1992) 8 Cal.App.4th 729, 732.)

"The purpose of the claim requirements is to provide a public entity with sufficient information to enable it to investigate and evaluate the merits of claims, assess liability, and, where appropriate, to settle claims without the expense of litigation." (*Ibid.*) "It has been held that, when the underlying purposes of the claims statutes have been satisfied, the courts should employ a substantial compliance test to determine whether the plaintiff has met the filing requirements." (*Ibid.* citation omitted.) "The doctrine of substantial compliance prevents the public entity from using the claims statutes as "traps for the unwary" when their underlying purposes have been met. (*Id.* at 732-33.)

"Government Code section 910 provides that a claim shall be presented by a claimant or '*by a person acting on his behalf*' and section 910.2 provides that the claim shall be signed by claimant or '*by some person on his behalf.*'" (*Lacy v. City of Monrovia* (1974) 44 Cal.App.3d 152, 155.)

Plaintiffs are husband and wife and jointly own the Property. The initial Claim Form submitted on January 22, 2022, identifies the claimant as "Zachary Rockwell" and is signed by Mr. Rockwell. The description of the claim repeatedly indicates that "we" noticed problems, called persons to perform work, and called EBMUD and other entities, among other things. It notes that Laurie Rockwell communicated with EBMUD regarding the issues. Despite EBMUD's claim that the "second submission, dated July 9, 2024, was again only presented by Zack Rockwell," it specifies: "Zack and Laurie Rockwell, hereafter referred to as 'claimants', 'we' or 'us', …" (RJN Ex. B at p. 1.)

While the initial Claim Form could have been clearer that both husband and wife were submitting the claim jointly, it does repeatedly indicated that "we" – meaning more than one person – were seeking compensation for the damage to the Property. The 'supplemental' Claim Form submitted in 2024 clarifies that the Claim is being submitted on both of their behalf. Ultimately, the Claim relates to damage to the Property – which is the house of both Zachary and Laurie Rockwell. "To require that the [Rockwell] claim be divided into two separate claims in this situation would not serve the intended purpose of the claim statute and [might] result in unfairly precluding a determination of [Plaintiff's] claim on its merits." (*Lacy*, supra, 44 Cal.App.3d at 156.)

EBMUD was aware that a claim was being submitted related to damage to the Property – a residential home. The Claim Form, while submitted by Zach Rockwell, sets forth claims to the joint property of he and his wife. It also repeatedly indicates what "we" did to identify the issues and what damage "we" incurred. This information was sufficient to put EBMUD on notice that the joint owners of the Property were submitting a claim for damage thereto.

Nuisance

The Government Claims Act "mandates that 'all government tort liability must be based on statute.'" (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426, 440.) "Because a government's duty is based solely on statute, the statute 'claimed to establish the duty must at the very least be identified.'" (*Id.* at 441.) Here, Plaintiffs allege that EBMUD's conduct constitutes "a nuisance within the meaning of Civil Code § 3479…." (¶ 34.)

EBMUD appears to argue that a nuisance claim cannot be based on a dangerous condition of public property. While that may be true, the SAC can, and does, allege separate theories of liability. Plaintiffs' fourth cause of action relates to a dangerous condition of public property. The second cause of action for nuisance is specifically based on Civil Code section 3479 – which defines nuisance. It is clear that "modern practice allows [a] party to plead in the alternative…." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402; see also *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29 noting "the pleading may properly set forth alternative theories in varies and inconsistent counts.")

"In *Nestle v. City of Santa Monica*, 6 Cal.3d 920, 936 [], the [California] Supreme Court held Civil Code section 3479 was a basis for nuisance actions against public entities; and section 815 of the Government Code constituting tort liability of public entity did not create a sovereign immunity defense as to such actions based upon Civil Code sections 3479, 3480, 3481." (*Helix Land Co. v. City of San Diego* (1978) 82 Cal.App.3d 932, 949; see also *Vedder v. County of Imperial* (1974) 36 Cal.App.3d 654, 661 finding "Government Code section 815 does not bar nuisance actions against public entities to the extent that such actions are founded on Civil Code section 3479, 348, and 3481, which define public and private nuisance.") "An act of … diversion of water constitutes a nuisance under Civil Code section 3479. (*Helix Land Co.* 82 Cal.App.3d at 949.)

Two years after *Nestle* the California Supreme Court held that the government claims statute applies "to actions brought [] for nuisance…." (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454. This holding confirms that a party may bring a claim for nuisance against a public entity.

While EBMUD makes clear it is "not arguing that a nuisance claim could never be stated," it relies upon *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379 to support its position that when a party asserts a dangerous condition claim it cannot also maintain a claim for nuisance. "[T]o the extent that the opinion in *Longfellow* could be construed, as [EBMUD] maintain[s], to preclude a plaintiff from simultaneously asserting causes of action for nuisance and for a dangerous condition of real property, [the Court] decline[s] to follow it." (*Pfleger v. Superior Court* (1985) 172 Cal.App.3d 421, 431.)

Trespass

As noted above, all government tort liability must be based on statute. (*Agustin,* 116 Cal.App.5th at 440; see also, *Cochran v. Herzog Engraving Co.* (1984) 155 Cal.App.3d 405, 409.) "Thus, in the absence of some constitutional requirement, public entities may be liable *only* if a statute declares them to be liable." (*Cochran* 155 Cal.App.3d at 409.) "Because a government's duty is based solely on statute, the statute 'claimed to establish the duty must at the very least be identified.'" (*Agustin,* supra, 116 Cal.App.5th at 441.)

Unlike with the nuisance cause of action, Plaintiffs do not identify a statutory basis for their trespass claim.

<u>Leave to Amend</u>

"[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) A trial court does not abuse its discretion in denying leave to amend when the moving party "merely stated in its opposition to [the] demurrer [or motion to strike] that 'if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend…." (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

Plaintiffs do not request leave to amend in their opposition. Nor do they make any substantive argument that they can properly plead a trespass cause of action against a public entity – given there is not statutory basis for such a cause of action. As such, leave to amend is **denied**.

<u>Conclusion</u>

The Court rules on Defendant EBMUD's demurrer as follows:

- **Overruled** as to the statute of limitations argument regarding timeliness of filing suit after submitting the government claim.

- **Overruled** regarding Laurie Rockwell's claims.
- **Overruled** as to the second cause of action for nuisance.
- **Sustained** as to the third cause of action for trespass, without leave to amend.

10. 9:00 AM CASE NUMBER: C24-03551
CASE NAME: LAMOND KING VS. MOISES BARRAGAN RAMIREZ
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: KING, LAMOND
****TENTATIVE RULING:****

The motion to be relieved as counsel by counsel for Lamond King is **GRANTED**.

Notice to Lamond King: You may wish to seek legal assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

11. 9:00 AM CASE NUMBER: C25-01498
CASE NAME: STEVEN IMBURGIA VS. ALEJANDRO SACUL GOC
***HEARING ON MOTION IN RE: INTERVENE**
FILED BY: PROGRESSIVE INSURANCE COMPANY
****TENTATIVE RULING:****

This motion has already been addressed by stipulation and order filed February 26, 2026.

12. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: TO CONSOLIDATE UNLAWFUL DETAINER (MS25-0977) WITH CIVIL RIGHTS ACTION (C25-02263) PURSUANT TO CCP 1048**
FILED BY: GODDARD, THOMAS JOSEPH
****TENTATIVE RULING:****

Before the Court is Plaintiff Thomas Goddard's Motion to Consolidate Unlawful Detainer (MS25-0977) with Civil Rights Action (C25-02263).

Plaintiff's Motion is **denied**.

Factual Allegations and Procedural Background

The focus of this matter is a dispute between a tenant (Plaintiff) and his landlord (Defendants). Plaintiff resides at an apartment located at 1910 N. Main Street, Unit 627, in Walnut Creek, California (“Property”). Defendant 1910 N. Main Street Apartments Capital LLC (“1910 Apartments”) owns the Property and Defendant Sares Regis Group Residential, Inc. (“Sares”) manages it.

On August 15, 2025, Plaintiff filed the Complaint in this instant matter. The Complaint alleges twelve causes of action. Notably, the first (Fair Housing Act – disability discrimination), third (fair housing Act – retaliation), and fifth (Unruh Civil Rights Act) causes of action are also alleged in the Federal case cited above.

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff (case No. MS25-0977). On January 26, 2026, the court entered a default judgment against Plaintiff. Notice of entry of judgment was sent on January 28, 2026. A writ of possession was issued on January 30, 2026. Plaintiff filed a notice of appeal on February 17, 2026. A stay of execution was issued, staying the order through February 27, 2026. The appeal was dismissed on April 6, 2026.

Defendant’s counsel indicates that the Sheriff’s department completed a lockout of the Property on March 5, 2026. In addition, they are informed that of April 9, 2026, Plaintiff has removed all his personal items from the Property and has vacated the premises.

Legal Standard

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency by avoiding unnecessary duplication of evidence and the danger of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-79.)

The decision to consolidate is left to the sound discretion of the trial court based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."])

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. As such, there is nothing left to consolidate. In other words, the current Motion is moot. A case becomes moot when “the question addressed was at one time a live issue in the case,” but has lost its life “because of events occurring after the judicial process was initiated.” (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) “[T]he duty of this court … is to decide actual controversies … and not to give opinions upon moot questions or abstract propositions….” (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be consolidated.

Conclusion

Plaintiff's motion to consolidate the unlawful detainer action, case no. MS25-0977, with this action is **denied.**

13. 9:00 AM CASE NUMBER: C25-02635
CASE NAME: LORENDA HOUSE VS. BARCELON ASSOCIATES MANAGEMENT CORP.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BARCELON ASSOCIATES MANAGEMENT CORP.
TENTATIVE RULING:

Before the Court is a demurrer filed by defendant, Barcelon Associates Management Corp. The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before July 13, 2026. If plaintiff elects not to amend, defendant's time to answer shall run from that date.

Background

In September of 2025, plaintiff Lorenda House, a 63-year-old female, filed a complaint against Barcelon Associates Management Corp. ("defendant") and Does 1-30. (Complaint, ¶11-12.) Plaintiff alleges she was a non-exempt manager / admin employee of "defendants" from approximately March 9, 2017 until February 28, 2023. (*Ibid*.) In or about September 2022, plaintiff felt severe stress from her job and therefore took "family medical leave." (*Id*. at ¶13.) While on leave, in October, plaintiff's mother died and plaintiff felt "further stress and anxiety." (*Ibid*.) Plaintiff returned to work around November 13, 2022. (*Ibid*.)

Upon her return to work, plaintiff's job duties were taken away. (Complaint, ¶14.) She was not allowed to check the mail or answer phone calls and when she lost her work keys, she was not given another copy. (*Ibid*.) Plaintiff's job duties were given to younger coworkers, which she complained about to "Victoria and Defendant's Board of Directors." (*Ibid*.)

Plaintiff alleges her employment was wrongfully terminated due to her age and disability / medical condition, in retaliation for her reasonable request for accommodation and for taking the medical leave, and in retaliation for her complaints of discrimination based on her age. (Complaint, ¶15.) She further alleges that, although she used her personal mobile phone for work, and worked off the clock, she was not compensated for such off-the-clock work, or reimbursed for the personal device. (*Id*. at ¶¶16-17.)

The complaint sets forth causes for action for (1) Failure to Reimburse Business Expenses, (2) Age Harassment / Discrimination, (3) Disability / Medical Condition Discrimination, (4) Failure to Engage in the Interactive Process, (5) Failure to Accommodate Disability, (6) Failure to Take Reasonable Steps to Prevent Harassment, Discrimination, and Retaliation, (7) Retaliation, (8) Wrongful Termination, (9) Unfair Business Practices, (10) Failure to Pay Minimum, Regular, And Overtime Wages, (11) Failure to Pay Waiting Time (Wage Continuation) Penalties, and (12) Failure to Provide Accurate, Itemized Wage Statements.

Defendant responded by making efforts to meet and confer, then filing the present demurrer to the third, fourth, and fifth causes of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). (See Declaration of Danielle C. Cepeda in Support of Demurrer.)

Plaintiff opposes the demurrer.

Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

Discussion

A. Disability / Medical Condition Discrimination (3rd C/A)

To plead a cause of action based on disparate treatment discrimination, a plaintiff must plead (1) she suffers from a disability, (2) she is otherwise qualified to do her job, (3) she suffered an adverse employment action, and (4) the employer harbored discriminatory intent. (*Avila v. Continental Airlines, Inc*. (2008) 165 Cal.App.4th 1237, 1246.)

Defendant argues plaintiff does not allege the first of these elements. Plaintiff's opposition argues that stress is sufficient to qualify as a disability or medical condition. On this point, parties appear to agree. Stress, as long as it limits a major life activity, can qualify as a medical condition that subjects one to disability discrimination. However, the Court agrees with defendant that the severity of the stress alleged *here* is inadequate. Plaintiff alleges she felt stress in September, and again in October, but not that it continued when she returned to work in November. The complaint does not allege that continued severe stress limited her life activities in any way beyond the time she took her leave of absence.

As for the intent element of the cause of action, plaintiff does not sufficiently state what defendant knew, or how. Despite the opposition's failure to address this point, the Court notes paragraph 30 recites, "Defendants knew or should have known of Plaintiff's disability / medical condition and/or perceived Plaintiff with having a disability / medical condition as set forth above." It appears this "should have known" allegation is insufficient to set forth the intent required for this cause of action.

The demurrer is sustained with respect to the third cause of action, with leave to amend.

B. Failure to Engage in the Interactive Process (4th C/A)

In order to plead that the employer failed to engage in the interactive process, a plaintiff has to allege that she requested a reasonable accommodation and that defendant failed to participate in a timely, good faith interactive process. (*Gelfo v. Lockheed Martin Corp*. (2006) 140 Cal.App.4th 34, 54.) Unless a disability is obvious, it is the employee's burden to initiate the interactive process, and when a disability is not obvious, the employee must submit reasonable medical documentation confirming its existence. (*Kao v. University of San Francisco* (2014) 229 Cal.App.4th 437, 450, citations omitted.)

Here, as noted above, plaintiff fails to sufficiently allege a disability, or that defendant knew about it. Accordingly, and lacking any allegations that her medical condition was obvious, defendant correctly points out that it had no obligation to initiate an interactive process pursuant to the facts pleaded.

In opposition to the demurrer, plaintiff argues that her taking medical leave triggered an obligation for defendant "to inquire" whether she needed "further" reasonable accommodations upon return. Plaintiff does not cite authority for this position and the Court is unaware of any such standard. Absent some factual allegation about the defendant's notice, plaintiff fails to plead that it failed to engage in good faith in the interactive process to determine reasonable accommodations.

The demurrer is sustained with respect to the fourth cause of action, with leave to amend.

C. <u>Failure to Accommodate Disability (5th C/A)</u>

Under the FEHA, an employer that fails to make reasonable accommodation for an employee's known physical disability engages in an unlawful employment practice. (*A.M. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 463, citing Gov. Code, § 12940, subd. (m).) The elements of a failure to accommodate claim are (1) the plaintiff has a disability under the FEHA, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.)

Here, plaintiff fails to sufficiently allege a disability, or that defendant knew about it, as noted above. She also fails to allege any requested accommodation that defendant failed to provide. As noted in the demurrer, the complaint alleges that defendant *did* grant her medical leave, the only requested accommodation identified in the complaint.

In opposition to the demurrer, plaintiff argues that, while her request for accommodation was granted "on paper," but was "negated" by her later being fired. This may amount to retaliation, discrimination, or wrongful termination, which are all separately alleged, but not a "de facto" failure to accommodate cause of action.

The demurrer is sustained with respect to the fifth cause of action, with leave to amend.

14. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: VIVINT SOLAR DEVELOPER, LLC
<u>*TENTATIVE RULING:*</u>

Defendants Sunrun, Inc. ("Sunrun") and Vivint Solar Developer, LLC ("Vivint", together with Sunrun, "Defendants") bring this demurrer to the complaint ("Complaint") of plaintiff Chris Davis ("Plaintiff"). Defendants challenge Plaintiff's: (1) first cause of action for breach of contract and express warranty; (2) second cause of action for breach of implied warranties; (3) third cause of action for rescission; (4) fourth cause of action for statutory relief for failure to pay arbitration fees; and (5) fifth cause of action for punitive damages.

For the reasons discussed below, Defendants' demurrer is **OVERRULED** with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of action for rescission, but the demurrer is **SUSTAINED** with leave to amend as to the causes of action for breach of contract, breach of implied warranty, failure to pay arbitration fees, and punitive damages. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Jeffrey R. Makin Decl., ¶¶ 2-4, Exhs. A-B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.,* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].

Background: Facts Alleged in Complaint

Plaintiff filed the instant Complaint in this matter on December 12, 2025. The Complaint alleges that on April 8, 2025, Gustavo Bauer ("Former Owner"), the former owner of real property located at 2424 Los Prados Way, Antioch, California (the "Property"), assigned all rights and claims held by him as against Defendants to Plaintiff, the current owner of the Property. (Complaint, ¶¶ 1-2.) The Former Owner entered into a solar energy contract (the "Agreement") with Defendants on or about May 1, 2021. (*Id*. at ¶ 7.) Sunrun warranted the system, represented that it was safe, and undertook obligations to insure, maintain and repair the system throughout its 25-year term. (*Id*. at ¶ 8.) On September 13, 2025, a catastrophic fire occurred at the Property and the fire report identified the cause as electrical arcing, which Plaintiff alleges is consistent with an inverter or wiring failure from Sunrun's system. (*Id*. at ¶¶ 9-10.) The fire burned 16 Italian cypress trees, a fence, and caused siding and structural damage. (*Id*. at ¶ 11.)

Plaintiff seeks not less than $55,000 in compensatory damages, punitive damages, sanctions for failing to pay arbitration fees, issue sanctions confirming Sunrun provided defective equipment, evidentiary sanctions relating to the sufficiency of the fire report to prove causation, attorney fees and costs, and interest. (Complaint, pp. 4-5.)

Discussion

The Court notes that the Opposition was filed on June 22, 2026, rather than when it was due on June 18, 2022. The Court will proceed to consider the Opposition but will request that Plaintiff file their papers in a timely manner moving forward.

The Assignment

Defendants argue that Plaintiff has no standing to file the instant Complaint because the assignment is ineffective on its face. (Demurrer, p. 8.) Defendants cite to Exhibit 2 attached to the Complaint, which contains the clause regarding assignment of the Agreement. (*Ibid*.) Defendant points out that assignment of the Agreement requires 15 days' notice to Defendants and their approval and that the assignment is thus facially ineffective. (*Ibid*.) Defendants argue that there is "no evidence" to suggest that the Former Owner obtained the consent of Defendants prior to the assignment, thus the assignment is ineffective. (*Id*. at p. 9.) Defendant cites to *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 980, which sustained a demurrer without leave to amend, after permitting three amendments, because "Heritage had failed to provide or allege an assignment agreement with sufficient particularity to demonstrate that the assignment of Monroy's promissory note included an intent to assign WMC's tort claims against the borrower." (*Ibid*.)

Plaintiff argues that the assignment transferred the causes of action arising from the AGreement, not the Agreement. (Opposition, p. 4.) Plaintiff points to the assignment attached to the Complaint as Exhibit 1, which states that the assignment provides that it "pertains solely to the Claims arising from the Incident and does not affect the rights or obligations under the solar lease agreement . . . which shall be addressed separately." (*Ibid*.) Plaintiff points out that California treats a cause of action as property the owner can transfer, citing Civil Code, section 954, which provides that "[a] thing in action, arising out of the violation of a right of property, or out of an obligation, may be transferred by the owner." Plaintiff cites *Comunale v. Traders & General Ins. Co*. (1958) 50 Cal.2d 654, 661-662, which stated, "the policy which provides that an assignment of an interest under the policy shall be binding only if Traders consents thereto. However, it is well settled that such a provision does not preclude the transfer of a cause of action for damages for breach of a contract." Plaintiff further argues that the Agreement only limits assigning the Agreement itself, not claims arising from it. (Opposition, p.4.)

The Reply argues that Plaintiff disregards material terms of the Agreement that provide that if the original owner sells their interest in the Property and the new owner refuses to assume the Agreement, then the Agreement is deemed terminated. (Reply, pp. 3-4.) Defendants argue that the Complaint and Opposition both assert that Plaintiff owns the Property now and that the Agreement was either terminated or ineffectively assigned to Plaintiff, and either way Plaintiff's claims must fail. (*Id*. at pp. 4-5.)

The Court notes Plaintiff has alleged in the Complaint that "Plaintiff is the assignee of all rights and claims held by former homeowner Gustavo Bauer, pursuant to a written Assignment of Rights executed on April 8, 2025." (Complaint, ¶ 2.) Plaintiff has also attached the assignment to the Complaint as Exhibit 1. (Complaint, Exh. 1.) The assignment only pertains to causes of action arising from the fire. (*Ibid*.) The assignment also shows that the Former Owner was still the owner of the Property at the time the assignment was made. (*Ibid*.) The Court finds the allegations of the Complaint sufficient for pleading purposes to withstand a demurrer. (*Stanton v. Pratt* (1941) 18 Cal.2d 599, 602 ["[S]aid paragraph of the complaint also expressly alleged an assignment to the plaintiff of the agreements which form the main basis of the cause of action. We think the allegation was sufficient as against the demurrer."]; *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 365 ["a hearing on demurrer cannot be turned into a contested evidentiary hearing."].)

Defendants' argument on Reply that the Agreement was terminated when the sale occurred because the Former Owner did not transfer the Agreement to the new owner or purchase the Solar System would not extinguish causes of action that arose prior to the Agreement being terminated.

Defendants' demurrer to Plaintiff's Complaint on the basis of the assignment is OVERRULED.

<u>Breach of Contract</u>

To state a claim for breach of contract, Plaintiff must allege, "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Defendants argue that "Plaintiff has failed to plead each of the required elements of a breach of contract action." (Demurrer, p. 11; Reply, p. 6.) Plaintiff argues that "Bauer performed by entering the Agreement, and nothing alleges he failed to perform; performance or excuse is adequately shown." (Opposition, pp. 6-7.)

The Court finds that Plaintiff has not pleaded his performance or excuse for nonperformance. His performance is more than simply entering the agreement, as the contract attached to the Complaint shows that he had monthly payment obligations for 25 years, starting at $169.44 per month and ending at $336.49 per month. (Complaint, Exh. 2, p. 50 [Home Improvement Agreement, p. 24].)

Defendants' demurrer to Plaintiff's cause of action for breach of contract is SUSTAINED with leave to amend.

<u>Breach of Implied Warranty</u>

To state a claim for breach of the implied warranty of merchantability in this case, a plaintiff must plead (1) that the plaintiff bought a consumer good from the defendant; (2) that at the time of purchase the defendant was in the business of selling that good to retail buyers; (3) that the consumer good was either (a) not of the same quality of those generally acceptable in the trade, (b) not fit for the ordinary purpose for which the goods are used, (c) was not adequately contained, packaged, and labeled, or (d) did not measure up to the promises of facts stated by the defendant; (4) that the plaintiff was harmed; and (5) that the defendants breach of the implied warranty was a substantial factor in causing the harm. (See CACI No. 3210; *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1246.)

Defendants argue that Plaintiff has failed to plead "any" of the elements required to state a claim for breach of implied warranty of merchantability. (Demurrer, p. 11.) Plaintiff argues that the Complaint properly alleges breach of implied warranty and cites to paragraphs 23 and 24 of the Complaint. (Opposition, p. 7 [¶ 23 incorporates all prior paragraphs].) On reply, Defendants offer new arguments that were not made in the moving papers. (Reply, pp. 6-7 [arguing that this claim fails because energy is not a consumer good and the agreement disclaims implied warranties].) The Court will not consider the new arguments made for the first time on reply.

The Court finds that Plaintiff did not plead the second element, "that at the time of purchase the defendant was in the business of selling that good to retail buyers." Paragraph 2 alleges that Defendants are "a business entity conducting substantial business in California," but that is not sufficient. "[F]acts not alleged are presumed not to exist." (*Kramer v. Intuit, Inc*. (2004) 121 Cal.App.4th 574, 578.)

Defendants' demurrer to Plaintiff's cause of action for breach of implied warranty is SUSTAINED with leave to amend.

<u>Rescission</u>

Civil Code section 1691 provides:

> to effect a rescission a party to the contract must, promptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:
>
> > (a) Give notice of rescission to the party as to whom he rescinds; and
> >
> > (b) Restore to the other party everything of value which he has received from him under the contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.
>
> When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.

Defendants argue that Plaintiff has failed to plead the requisite elements for rescission as per Civil Code section 1691, including notice and an offer to restore the other party. (Demurrer, p. 11; Reply, p. 7.) Plaintiff contends that although Plaintiff did not plead notice and restoration, the complaint serves as notice and further detail can be added by amendment, noting that this is not a reason to dismiss the claim at the pleading stage. (Opposition, p. 7.)

The Court finds that Plaintiff has properly pled the claim for rescission. The Code itself states that "[w]hen notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both." (Code of Civ. Proc., § 1691.)

Here, despite Plaintiff not pleading notice or an offer to restore the benefits received under the Agreement, the code itself excuses that due to the fact that a pleading being served which seeks relief based on rescission (as the Complaint does here), is thus deemed to be the notice and offer.

Defendants' demurrer to Plaintiff's cause of action for rescission is OVERRULED.

Failure to Pay Arbitration Fees

Code of Civil Procedure section 1281.97, subdivision (a), provides that in a consumer arbitration that requires the drafter to pay certain fees and costs, when a consumer meets the filing requirements necessary to initiate an arbitration and the drafter does not paid the fees and costs within 30 days, the drafter is in material breach of the arbitration agreement and waives the right to compel arbitration. Subdivision (b) provides that if the drafter materially breaches the arbitration agreement, the consumer may: "(1) Withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction. [or] (2) Compel arbitration in which the drafting party shall pay reasonable attorney's fees and costs related to the arbitration."

Defendant argues that this statute does not create a separate cause of action, it merely outlines procedural steps should a party fail to pay required arbitration fees. (Demurrer, p. 12; Reply p. 7.) They also argue that the statute is not satisfied here due to the ineffectiveness of the purported assignment. (*Id*. at p. 11.) Plaintiff argues that the Complaint properly alleges satisfaction of the statute, and notes that "[i]f the Court wants the request reframed, that is a matter for amendment, not dismissal." (Opposition p. 7.)

The Court finds that Plaintiff's claim for failure to pay arbitration fees is not a proper standalone cause of action, as the remedies identified in the statute speak for themselves.

Defendants' demurrer to Plaintiff's cause of action for punitive damages is SUSTAINED with leave to amend. Leave to amend is being granted due to the fact that these claims have not been struck from the Complaint and can be raised in the proper mechanism in the future should the need arise.

Punitive Damages

Defendants argue that the punitive damages claim is improper because they are based on a breach of contract claim and are not available for any of his causes of action. (Demurrer, p. 12; Reply, p. 8.) Plaintiff argues that punitive damages are a remedy and not a cause of action so the right tool to challenge them is a motion to strike, not a demurrer. (Opposition, p. 8.) Plaintiff further argues that there are allegations in the Complaint that support punitive damages, leaving live electrical components after the fire. (*Ibid*.)

The Court finds that there is no standalone cause of action for punitive damages. "There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]." (*Grieves v.*

Superior Court (1984) 157 Cal.App.3d 159, 163-164.)

Defendants' demurrer to Plaintiff's cause of action for punitive damages is SUSTAINED with leave to amend. Leave to amend is being granted in that punitive damages have not been struck from the Complaint and may be raised in the proper mechanism in an amended complaint should they be warranted.

Uncertainty

" '[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.' " (*A.J. Fistes Corp. v. GDL Best Contractors, Inc*. (2019) 38 Cal.App.5th 677, 695.) " 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.' " (*Ibid*.) " '[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' " (*Ibid*.) "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Defendants argue that the Complaint fails for uncertainty because "the Complaint is wholly ambiguous and unintelligible as to Plaintiff's purported causes of action." (Demurrer, p. 12; Reply, pp. 8-9.) Plaintiff argues that "[u]ncertainty is a narrow, disfavored ground, reserved for pleadings so confusing the defendant cannot tell what it must respond to. . . That is not this Complaint." (Opposition, p. 8.)

The Court finds that although the Complaint here fails to allege facts sufficient to state certain causes of action, this is based on more of a failure to incorporate sufficient facts into the pleading and less as to ambiguities in the allegations actually made.

Defendants' demurrer to Plaintiff's Complaint on the basis of uncertainty is OVERRULED.

Ruling on the Demurrer

The Court **OVERRULES** Defendants' demurrer with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of action for rescission. The Court **SUSTAINS** Defendants' demurrer to the causes of action for breach of contract, breach of implied warranty, failure to pay arbitration fees, and punitive damages, with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

15. 9:00 AM CASE NUMBER: N26-0448
CASE NAME: CLAIM OF:RAYMOND HUDSON
***HEARING ON MINOR'S COMPROMISE**
FILED BY: HUDSON, RACHEL
TENTATIVE RULING:*

The Court has reviewed the submissions in the case but does not see any documentation of medical claims or recovery. Upon the filing of such documentation—assuming it supports the Petition—the Court will be prepared to grant the Petition.

16. 9:00 AM CASE NUMBER: N26-0855
CASE NAME: PETITION OF:JEFFERSON BORGES
HEARING IN RE:
FILED BY:
TENTATIVE RULING:

The Petition is **denied without prejudice** for lack of proof of service.

Courtroom Clerk's Calendar
Add on

17. 8:32 AM CASE NUMBER: C26-01186
CASE NAME: LARRY BUI VS. LYNNE BUI
***HEARING ON MOTION IN RE: MOTION TO RELATE AND CONSOLIDATE**
FILED BY: BUI, LYNNE A.
TENTATIVE RULING:

Larry Bui seeks to consolidate this action with the later filed MS26-0344 unlawful detainer action. In this earlier-filed action, Bui seeks to resolve complex issues of title that are intermingled with a Florida Bankruptcy action involving Lynne Bui. Defendant Sunny Behl, the Plaintiff in the unlawful detainer action, took possession of Lynne Bui's property fully aware of these encumbrances and title disputes. For that reason, this case is properly consolidated and Plaintiff's Motion is **GRANTED**.